

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: _____
Date Filed: _____

ROCKY LEZAMA and LATOYA LEZAMA,

Plaintiffs designate
Kings County

Plaintiffs,

The basis of Venue is
CPLR §504

-against-

S U M M O N S

THE CITY OF NEW YORK, P.O. BRAVO (first name
unknown) and P.O. TEJEDA (first name unknown),

Plaintiffs reside at:
672 Ralph Avenue
Brooklyn, NY 11212

Defendants.

County of Kings

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: October 18, 2022



JORDAN W. TUCKER

Attorney for Plaintiffs
26 Court Street
Brooklyn, New York 11242
(718) 875-4805

Address of Defendants:

100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ROCKY LEZAMA and LATOYA LEZAMA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. BRAVO (first name
unknown) and P.O. TEJEDA (first name unknown),

Defendants.

Index No.:

COMPLAINT

Plaintiffs, Rocky Lezama and Latoya Lezama, by their attorney, Jordan W. Tucker, as and for their Complaint, hereby allege the following, upon information and belief:

1. At all relevant times, plaintiffs were, and remain, residents of the County of Kings, City and State of New York.

2. At all times herein mentioned, defendant, THE CITY OF NEW YORK was, and still is, a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendants, P.O. Bravo and P.O. Tejada, were, and remain, agents, servants and/or employees of The Police Department of The City of New York.

4. Plaintiff has complied with all of the applicable Sections of the General Municipal Law, which are conditions precedent to the bringing of this action against the defendants, THE CITY OF NEW YORK.

5. On the 29th day of March, 2022 plaintiffs' Notice of Claim and Intention to Sue were duly served upon and filed with the Office of the Comptroller of the City of New York; said notice was filed within ninety (90) days after the cause of action herein accrued.

6. At least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the City for adjustment and that it has neglected and/or refused

to make adjustment or payment thereof. That this action is commenced within one year and (90) days after the cause of action accrued.

7. On or about the 9th day of March, 2022, while plaintiff, Rocky Lezama, was lawfully and legally located at or near Remsen Avenue, between Avenue A and Church Avenue, in the County of Kings, City and State of New York, without privilege, provocation, justification or cause, defendant, its agents, servants and/or employees, and more specifically P.O. Bravo and P.O. Tejada did assault, batter, shoot with a taser, arrest, imprison and maliciously prosecute the plaintiff, Rocky Lezama, thereby depriving him of his State and Federal, Civil and Constitutional Rights, and did otherwise cause injury. Plaintiff was aware of his arrest and did not consent to same. Any and all criminal charges were resolved favorably for plaintiff herein.

AS AND FOR A FIRST CAUSE OF ACTION - NEGLIGENCE

8. The defendant, The City of New York, its agents, servants and/or employees was negligent, careless and reckless in causing, permitting and allowing the plaintiff to be falsely accused, arrested, tased, and held illegally by police officers of The City of New York; in failing to adequately hire and train said police officers; in failing to discharge said police officers although the City knew, or should have known, that said officers were a danger and nuisance to the public, and, more particularly, to plaintiff herein; in violating the federal and state constitutional and civil rights of the plaintiff herein, and; in all other ways the defendant was negligent, careless and reckless.

9. That solely as a result of the foregoing, the plaintiff has been caused to suffer damages, including prolonged wrongful incarceration and mental anguish.

10. That the plaintiff did not contribute to the manner of the happening of the event by any act or omission on his part. That the occurrence took place solely and wholly as a result of the negligence on the part of the defendant herein as aforesaid, there being no contributory negligence on the part of the plaintiff herein.

11. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION - FALSE ARREST

12. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers “1” through “11” inclusive, with the same force and effect as if fully set forth at length herein.

13. By reason of the foregoing the plaintiff was falsely arrested and unlawfully imprisoned.

14. Defendant, its agents, servants and/or employees, including P.O. Bravo and P.O. Tejada, utilized excessive force in arresting plaintiff.

15. Defendants did not have the right to arrest and imprison plaintiff.

16. Defendants did not have probable cause to arrest and imprison plaintiff.

17. Plaintiffs did not consent to said arrest and imprisonment.

18. Plaintiff was conscious of said arrest and imprisonment.

19. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

20. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION - MALICIOUS PROSECUTION

21. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers “1” through “20” inclusive, with the same force and effect as if fully set forth at length herein.

22. Defendants thereafter maliciously prosecuted, or maliciously and wrongfully caused the prosecution of plaintiff by wrongfully complaining, commencing and/or continuing a criminal proceeding against plaintiff, which ended in favor of the plaintiff. Defendant, its agents, servants

and/or employees, and more specifically P.O. Bravo and P.O. Tejeda acted against plaintiff in the absence of probable cause for the criminal proceeding, and by defendants instituting the criminal proceeding with actual malice, including by arresting and prosecuting plaintiff while defendants knew that plaintiff committed no crime.

23. As a result of defendants' conduct, plaintiff suffered damages, including loss of liberty and freedom, personal and public humiliation and shame, psychological trauma, severe emotional distress, legal fees, lost wages and lost opportunities, as well as future injuries, lost wages and lost opportunities, all to plaintiff's damage.

24. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION -
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

25. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers "1" through "24" inclusive, with the same force and effect as if fully set forth at length herein.

26. By reason of the foregoing, defendants are guilty of causing the negligent infliction of emotional distress upon plaintiff.

27. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION - EXCESSIVE FORCE

28. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers "1" through "27" inclusive, with the same force and effect as if fully set forth at length herein.

29. By reason of the foregoing, defendants are guilty of assault, battery and excessive

force.

30. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION - 42 U.S.C. § 1983

31. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers “1” through “30” inclusive, with the same force and effect as if fully set forth at length herein.

32. Defendants, P.O. Bravo and P.O. Tejada, violated plaintiff’s civil rights pursuant to 42 U.S.C. § 1983 by arresting him without probable cause to do so, by intentionally and wrongly filing false reports, complaints and making false statements about plaintiff to the Kings County District Attorney’s office, by wrongfully using, and abusing their power to arrest plaintiff and by causing his criminal prosecution, although these defendants knew that their allegations were wrong and false.

33. That all criminal proceedings were resolved in plaintiff’s favor.

34. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN SEVENTH CAUSE OF ACTION -
NEW YORK STATE CONSTITUTIONAL VIOLATIONS**

35. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers “1” through “34” inclusive, with the same force and effect as if fully set forth at length herein.

36. Defendants, P.O. Bravo and P.O. Tejada, violated plaintiff’s civil rights pursuant to the New York State Constitution by arresting him without probable cause to do so, by intentionally and wrongly filing false reports, complaints and making false statements about plaintiff to the Kings

County District Attorney's office, and by causing and/or allowing the criminal prosecution to exist and continue when these defendants knew their allegations were wrong and false.

37. That all criminal proceedings were resolved in plaintiff's favor.

38. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF LATOYA LEZAMA**

39. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbers "1" through "38" inclusive, with the same force and effect as if fully set forth at length herein.

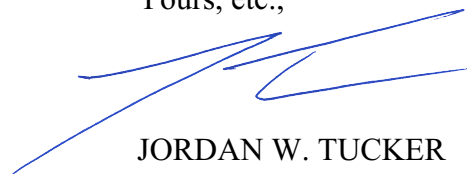
40. Plaintiff, Latoya Lezama, is the lawful spouse of plaintiff Rocky Lezama.

41. By reason of the foregoing, the plaintiff, Latoya Lezama, has been deprived of the services, society, consortium and companionship of her husband, Rocky Lezama.

42. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiffs demand judgment against defendant in the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action in amounts that exceed the jurisdictional limits of all lower courts, which otherwise have jurisdiction, such amounts to be determined upon the trial of this action, together with the costs and disbursements of this action.

Yours, etc.,



JORDAN W. TUCKER
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